

625STCV1947 625STCV1947

County: los-angeles

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Case Number: 625STCV1947 Hearing Date: August 12, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ALBERT RAMOS JIMENEZ,

Plaintiff,

vs.

SCREAMLINE INVESTMENT

CORPORATION, et al.,

Defendants.

Case No.:

25STCV19476

Hearing Date:

August 12, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

SCREAMLINE INVESTMENT CORPORATION'S MOTION TO QUASH SERVICE OF SUMMONS

Background

Plaintiff

Albert Ramos Jimenez ("Plaintiff")

filed this action on July 3, 2025 against Defendants Screamline Investment Corporation ("Screamline") and George Philip Rucke, alleging two causes of action for (1) motor vehicle and (2) general negligence.

Screamline now moves to quash service of summons "pursuant to Code of Civil Procedure section 418.10, because the proof of service filed in this case indicates that Plaintiff left a copy of the summons and complaint with an employee who was not apparently in charge of the office or usual place of business of Moving Defendant, which is insufficient to effectuate service of the summons and complaint." (Notice of Mot., 2:10-13.) Plaintiff did not file an opposition.

Request for Judicial Notice

The Court grants Screamline's request for judicial notice of Exhibit A.

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Legal Standard

Code of Civil Procedure section 418.10 provides in part: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ...

(1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd.

(a).) "The effect of [a notice of motion to quash service] is to place upon the plaintiff

the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Discussion

Screamline moves to quash service, asserting that “the purported proof of service on Screamline filed by Plaintiff in this case indicates that Screamline was not served by delivering the summons and complaint on its president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process as required by statute. Instead, Plaintiff filed a proof of service indicating that the summons and complaint were served by substitute service on a person ‘apparently in charge at the office or usual place of business of the person to be served’ by the name of ‘Chris Pablo.’ Chris Pablo is an employee of Screamline that works in the human resources department only. There is no basis for the statement that he was ‘apparently in charge of the office’ of Screamline’s place of business simply because he may have been present in the office. Service is not proper simply because a process server hands papers to any employee found working at the premises. Therefore, there has been no service of the summons and complaint on Screamline in this case and accordingly, the purported service must be quashed.” (Mot., 4:14-27.)

Screamline cites both Code of Civil Procedure sections 416.10 and 415.20 in support of the instant motion. Section 416.10 applies to what individuals may be served on behalf of a corporation for personal service, whereas section 415.20 applies to substituted service. Specifically, Code of Civil Procedure section 415.20, subdivision (a) states that “[i]n lieu of personal delivery of a copy of the summons and complaint to the person to be served as specified in Section 416.10, 416.20, 416.30, 416.40, or 416.50, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the person’s office or, if no physical address is known, at the person’s usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.”

The procedural rules for a motion to quash service of summons for lack of jurisdiction are well settled: “[a]lthough the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.” (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 110.) However, Plaintiff did not file an opposition. Notwithstanding, Evidence Code section 647 creates a rebuttable presumption that proof of service done by a registered process server is adequately effectuated. The proof of service demonstrates service was done by a registered process server.

In support of the instant motion, Screamline includes a declaration from Shoeleh Sapir, which states that “[a]s an officer and director of Screamline, I am aware of the persons employed by Screamline and their positions. I am able to declare that Chris Pablo is an employee in the human resources department of Screamline. He is neither the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process. Mr. Pablo also is not a person in charge of Screamline's office or place of business.” (Sapir Decl., ¶ 2.) Moreover, the declaration attests that “to the best of my knowledge, the summons and complaint in this matter were never received by Screamline in the mail.” (Sapir Decl., ¶ 3.)

Screamline produced evidence that Chris Pablo was not authorized to accept service on behalf of Screamline and was not “apparently in charge” because he does not run the office. Screamline also attests that it did not receive service via the mail. Thus, Screamline rebuts the presumption that service was properly effectuated. Because Plaintiff did not file an opposition, he cannot carry his burden demonstrating that service was indeed proper. Accordingly, the motion to quash for improper service is granted.

Conclusion

In light of the foregoing, Screamline's motion to quash service of summons is GRANTED.

Screamline is ordered to give notice of this Order.

DATED: August 11, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court